

24STCV19495 24STCV19495

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV19495 Hearing Date: August 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

21, 2026 TRIAL DATE: November 9, 2026

CASE: John M.C. Doe, et al. v. Los Angeles Unified School District

CASE NO.: 24STCV19495

DEFENDANT

LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION FOR LEAVE TO CONDUCT A
PSYCHOLOGICAL EXAMINATION OF PLAINTIFFS

MOVING PARTY: Defendant

Los Angeles Unified School District

RESPONDING PARTY: Plaintiffs John M.C.

Doe and John M.S. Doe

Plaintiffs,

John M.C. Doe (M.C.) and John M.S. Doe (M.S.) bring this childhood sexual abuse
action against defendant Los Angeles Unified School District (LAUSD).

On July 9, 2026,

LAUSD filed this motion for leave to conduct a psychological examination of
Plaintiffs. LAUSD seeks a court order compelling

Plaintiffs

to appear for their mental examinations, specifically allowing Dr. James R. High and Dr. Ted Evans, Ph.D. to inquire into Plaintiffs' past and present interpersonal relationships, including but not limited to, marital, parent-child, social, peer, mentor, and/or professional relationships to the extent reasonably necessary to evaluate psychiatric/psychological functioning, causation, diagnosis, prognosis, and damages. LAUSD does not request sanctions.

On August 10,
2026, Plaintiffs filed a partial opposition.

On August 14, 2026, LAUSD filed a reply.

After considering
the motion, opposition, and reply, the court will grant the motion. Plaintiffs do not oppose the taking of their mental examinations (see Opp., p. 2:2), but express concern that "absent a court order, Defendants' experts will inquire into Plaintiffs' sexual histories with individuals other than their alleged perpetrator, their former teacher Vance Miller" (Opp., p. 2:12-14). Plaintiffs' concern, however, is misplaced given LAUSD's representation in its moving papers, and confirmed in its reply, that LAUSD will not inquire into Plaintiffs' sexual conduct other than Vance Miller. (See Mot., p. 4:9-11; Reply, p. 7:13-17.)

Given the parties' extensive meet and confer efforts, and the apparent agreement on how the mental examinations are to proceed, the motion is GRANTED. The mental examinations of Plaintiffs are to proceed as outlined in the amended proposed order submitted by LAUSD with its reply.

LAUSD to give notice, unless waived.

Dated: August 21, 2026

Brock T. Hammond

Judge of the Superior Court